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IN THE UNITED STATES DISTRICT COURT
For The Northern District of Mississippi

Matthew D. Reardon

Plaintiff

VS

3:22-CV-050-SA-JMV

State of Mississippi Et Al Defendants

Memorandum in Support of Re-Instating
Defendants State of Mississippi and Mississippi Dept of Mental
Health

Comes Now your Plaintiff, Matthew Reardon,
whom offers the following Memorandum in Support
of his Motion for Relief from Judgement or order
with prayer for Injunction and Protection?
^{Emergency}

On January 17th 2023, this Court Moved ahead on
it's own initiative in Granting Defendants State of
Mississippi (State) and Mississippi Dept of Mental Health
(MDMH) Dismissal without Prejudice After It had not
received any Response to these Defendants Motions
to DISMISS [38, 43] based upon the Eleventh Amendment.
The States Motion Was filed August 8, 2022 and MDMH's
Motion Was filed October 20, 2022. Both Defendants
were represented by the same counsel, a Drew Guyton with
the Mississippi Attorney Generals office (AG).

Due to being incarcerated without any extra resources
or ability to respond at the time due to conditions of confinement,
Plaintiff wasn't able to respond. The State and MDMH
"Enjoys Eleventh Amendment Immunities" if Plaintiff recalls
Correctly, Well, Plaintiff's primary Response is that he enjoys
1st Amendment protections & Immunities, 4th Amendment Protections & Immunities,
and 14th Amendment Protections and Immunities. In fact all Rights,

However, on many occasions the State showed no care for the protections and Immunities of the rights listed out. For Years now the cry for help has gone ignored and Unanswered, allowing All that has occurred to keep occurring as a result of the Precedence set by this Office's failure to Act. By it's failure to intervene. By its failure to offer Corrective Process in protecting the Freedoms, Rights, and Liberties of all of its citizens. This, No Doubt, was the First Response that Naturally came to mind. How could the State of Mississippi expect to hide behind ~~be~~ claims that run afoul of the eleventh amendment, while It watched and Condoned it's own public officials running afoul of so many others?

The state of Mississippi could have prevented all of what is taking place at the current had it simply Answered the Many Unanswered calls for help. Had it taken any of the reports seriously. The Precedence cannot be further set that Just one can go protected while the rest stay neglected. The Fourteenth Amendment Guarantees to All Citizens the Equal Protections under the law, ~~that is~~
~~we have equality is~~

Ex Parte Young doctrine as an exception

As this Court has Noticed, there are three exceptions to Eleventh Amendment immunity, Waiver, Ex Parte Young doctrine, and abrogation. Neither Waiver nor Abrogation Apply here. However, Ex Parte Young doctrine does.

Fortunately, Plaintiff covered this base when he filed his Affidavit/Declaration of Truth into the alleged Criminal Acts of Lafayette County Sheriff Joey East Based upon the multitude of

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separate events and occurrences that continued to build over the span of 2017 until the time the Affidavit was executed in January, 2022, including the first Judicial Commitment that occurred 12/7/21 from the Direct Assistance of Sheriff East. This Affidavit/Declaration of truth placed Sheriff East on notice ~~along with~~ of East's violations of Federal Law alleged and allowed East an opportunity to respond to the alleged violations, while providing clear notice that the failure to respond and rebut claims made would amount to his Tacit Agreement with all claims not rebutted. The Affidavit would be held to be a true and valid Affidavit that could be used in any court. This Affidavit/Declaration is attached to the Amended Complaint [30] after the complaint itself concludes, and directly after the email exhibit of David O'Donnell. Proof of Service is attached proving that service was provided to O'Donnell whom a knowledgeable serving a copy on East. A copy was also filed in Lafayette County Circuit Court under Cause L21-494 along with a copy being provided to Sherry Wall. Finally, as noted at the end, this Affidavit/Declaration was sent to the Attorney General's office to provide notice of the claims of ^{this} County Sheriff to the state so that the state was properly noticed of all claims. MDMH is for this argument considered an arm of the state. As that "arm" it acted on its own accord. It should have known the claims attached to Sheriff East prior to assisting in the conspiratorial conduct to involuntarily keep plaintiff judicially committed.

Finally, plaintiff was unable to ~~communicate~~ communicate out or receive updates and notifications from this court as he was ~~not~~ transferred around and detailed this serious matter out in his Emergency Motion.

Paper for Relief
Plaintiff Prays this Court Grant his
Emergency Motion for Relief from Judgment

Submitted the 7th day March 2023



Matthew Leaden

Subscribed and sworn to before me in my
presence, this 7 day of MARCH
2023, a Notary Public in and for the
County of Lauderdale State of MS
Casey Newell
(Signature) Notary Public
My Commission Expires Jan 18 2025

